



POLICE DEPARTMENT

July 31, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202301667 (Incident Date: February 14, 2023) regarding Sergeant Christopher McDonald, Tax No. 951980 (DADS No. 2024-31037)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202301667, pertaining to Sergeant Christopher McDonald. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Sergeant McDonald would be detrimental to the Police Department's disciplinary process.

After reviewing the available evidence, the Police Commissioner disagrees with the CCRB and finds that Sergeant McDonald was within guidelines when he directed the complainant be removed to the hospital. However, the Police Commissioner does agree with the CCRB that it was improper for Sergeant McDonald to have threatened to remove the complainant to the hospital again in their second interaction. Additionally, the Police Commissioner agrees that Sergeant McDonald should have offered the complainant a business card after he ordered a search of the complainant.

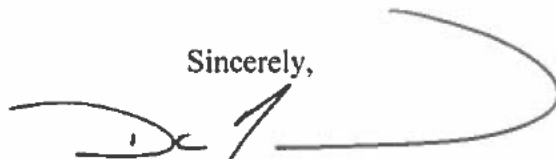
Sergeant McDonald has no prior substantiated CCRB cases and no formal disciplinary history. Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to issue Sergeant McDonald a Schedule "A" Command Discipline with the forfeiture of five (5) vacation days for the allegations that he failed to provide a business card and his threat to remove the complainant to the hospital. However, the Police Commissioner intends to impose no disciplinary action against Sergeant McDonald for the allegation

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that he forcibly removed the complainant to the hospital.

Sincerely,

A handwritten signature in black ink, appearing to read 'Anthony S. Marino', with a large, sweeping loop at the end.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

August 6, 2024

The Honorable Edward Caban
Police Commissioner
New York City Police
Department One Police Plaza
New York, New York 10038

RE: CCRB Case No. 202301667
Sgt. Christopher McDonald,
(DADS No. 2024-31037)

Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony Marino, dated July 31, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to retain jurisdiction over this matter against Sergeant Christopher McDonald. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding (hereinafter referred to as the “MOU”) between CCRB and the New York City Police Department. I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino states that “The Police Commissioner disagrees with the CCRB and finds that Sergeant McDonald was within guidelines when he directed the complainant be removed to the hospital... [and] intends to impose no disciplinary action against Sergeant McDonald for the allegation that he forcibly removed the complainant to the hospital.” CCRB disagrees with this determination.

It is undisputed that § 87(2)(b) did not want to be removed to the hospital. Additionally, BWC video confirms that while § 87(2)(b) had previously physically resisted leaving the stationhouse by tensing his body and refusing to move on his own, there was no indication that § 87(2)(b) was any danger to himself or others when Sgt. McDonald called for an ambulance, as § 87(2)(b) was solely asking to file his complaint. The actions to which Sgt. McDonald testified that led him to believe § 87(2)(b) was an EDP began after Sgt. McDonald called for an ambulance and the officers informed § 87(2)(b) that he would be going to the hospital. Such actions and verbal protests constitute an arrestable offense for trespass but did not constitute the behavior of someone who appeared to be deranged or mentally ill.

Additionally, Deputy Chief Marino states that the “Police Commissioner does agree with the CCRB that it was improper for Sergeant McDonald to have threatened to remove the complainant to the hospital again in their second interaction. Additionally, the Police Commissioner agrees that Sergeant McDonald should have offered the complainant a business card after he ordered a search of the complainant...[and] the Police Commissioner, in the interest of justice, intends to retain jurisdiction over this matter [and] intends to issue Sergeant McDonald a Schedule "A" Command

Discipline with the forfeiture of five (5) vacation days for the allegations that he failed to provide a business card and his threat to remove the complainant to the hospital.” CCRB disagrees with the determination to retain the matter.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, and in the interest of justice, it is respectfully requested that you permit CCRB to pursue Charges and Specifications against Sergeant McDonald in this matter.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "Jon Darche", with a stylized, cursive script.

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

August 7, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

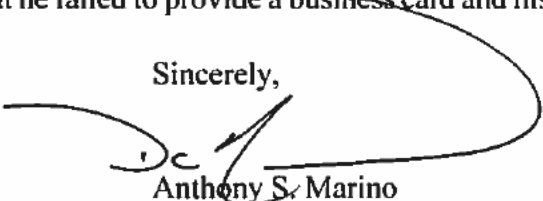
Re: CCRB Case No. 202301667 (Incident Date: February 14, 2023) regarding Sergeant Christopher McDonald, Tax No. 951980 (DADS No. 2024-31037)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated August 6, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Sergeant Christopher McDonald. Nevertheless, he maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Sergeant McDonald for the reasons expressed in my July 31, 2024 letter.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, directs that no disciplinary action be imposed against Sergeant McDonald for the allegation that he forcibly removed the complainant to the hospital. Furthermore, the Police Commissioner directs that a Schedule "A" Command Discipline with the forfeiture of five (5) vacation days be issued for the allegations that he failed to provide a business card and his threat to remove the complainant to the hospital.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

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